

DEPARTMENT TWENTY-TWO
HONORABLE ALESIA JONES
707-207-7322

**TENTATIVE RULINGS
AND
PROBATE PREGRANTS**

CALENDAR DATE: June 25, 2026

ADVISEMENTS

Probate Notes: Probate notes are available in individual cases and are not posted on the public website. For more information on how to access case information through the court's public portal, please visit <https://portal.solano.courts.ca.gov>.

Civil Tentative Rulings and Probate Pregrants: Current procedures to advise the court of appearances and nonappearances in response to tentative rulings and pregrants remain unchanged. Probate pregrants and tentative rulings are not posted for conservatorships, guardianships, or any ex parte matters.

Appearances by Zoom: Remote appearances by Zoom are permitted except for MSCs, TMCs, trials or evidentiary hearings, or cases in which in-person appearances have been ordered. Persons appearing by Zoom are to be in appropriate attire. They are also to be in a quiet place where they can speak without interruption and clearly hear the proceedings.

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**PREGRANTS AND TENTATIVE RULINGS
START ON THE NEXT PAGE**

9:30 a.m. CALENDAR

LINE

2

**IN THE MATTER OF WILLIE J. BURNS & JULIE P. BURNS TRUST
FPR051670**

Petition to Compel Accounting Probate Code 10950 subd. (a) Prob C 16062

Objection to Petition to Compel Accounting and Request for Sanctions

Declaration of Eric F. Leroy on Production of Accounting and Request for Dismissal
Pursuant to Probate Code Section 17202

PREGRANT ORDER

This matter was continued from March 23, 2026 and May 7, 2026 to allow the moving party to file a proof of service. The court notes the declaration filed by the trustee which appears to be in support of a Request to Dismiss, but no Notice of Hearing was filed. There is also a Motion to Vacate Order on calendar for July 1, 2026 which will remain as set.

The court on its own motion continues this hearing to July 1, 2026, at 9:30 a.m. in Department 22 so that both matters can be heard concurrently.

LINE

3

**IN THE MATTER OF THE GRIEF FAMILY 2011 REVOCABLE TRUST
PR24-00101**

Petitioner Theodora Dahan's Reply in Support of Motion to Suspend Pamela Grief as Trustee; and Request for Order Compelling Accounting and Freezing Distributions

Status Hearing RE: Mediation

PREGRANT ORDER

Continued on the court's own motion to July 23, 2026, at 9:30 a.m., Department 22.

LINE

4

**IN RE THE ESTATE OF DAVID MAMORU TAKEUCHI, DECEASED
PR24-00509**

First and Final Report of Personal Representative, Petition for Final Distribution, Payment of Statutory Fees to Attorney, Payment of Other Fees to Attorney, Reimbursement of Advanced Costs to Attorney, Reimbursement of Expenses by Personal Representative and Beneficiary

PREGRANT ORDER

The court finds all notices have been given as required by law. The petition is granted as prayed, except that release of liability and discharge shall be ordered only upon the filing of the *Ex Parte Petition for Final Discharge and Order* once assets are distributed pursuant to Probate Code § 11753.

The petitioner seeks a reserve of \$120,000. Because the requested reserve exceeds \$5,000, the court will impose a requirement for an informal accounting prior to or concurrently with any ex parte application for discharge. (Solano County Local Rules, Rule 7.66(e).

LINE

5

IN THE MATTER OF THE RAY AND MERCEDES ODOM LIVING TRUST DATED OCTOBER 12, 1992 PR25-00746

Verified Petition For (1) Removal of Successor Trustee For Abandonment; (2) Appointment and Confirmation of Successor Trustee; (3) Accounting; (4) Delivery of Trust Property; and (5) Bond Waiver or, In the Alternative, Provisional Bond

PREGRANT ORDER

This matter was continued from January 7, 2026, March 23, 2026 and May 13, 2026 to allow the petitioner to address issues with the petition. The court has reviewed the Supplemental Declaration filed March 4, 2026 and March 19, 2026 and other documents which did not resolve all issues. The following issues remain unresolved. In addition, at the last hearing Counsel for Trustee stated his verbal objection and intent to file a written objection. However, there is no written objection on file.

The court on its own motion continues this hearing to August 26, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issues:

1. The copy of the trust attached to the petition indicates that the trust is governed by Oklahoma law, and the petition states the current trustee resides in Oklahoma. It is unclear how the court has jurisdiction over the trustee or the administration of the trust given Probate Code sections 17002 through 17205. The Declaration appears to state that because the beneficiary lives in California, that gives this court jurisdiction over the trust which is not compliant with Probate Code section 17002.
2. There is no Proof of Service showing that the Supplemental Declaration was served on all interested persons. There is a proof of service for the initial petition and notice of the hearing, but not the supplemental declaration.

LINE

6

**IN RE THE MATTER OF THE EVELYN JANE ELM LIVING TRUST
PR25-00768**

Petition for Demand of Information and Accounting; to Remove Trustee; for Return of Trust Assets; and Instructions to Restrain the Trustee from Using Trust Assets to Defend Litigation [Cal. Prob. Code §§ 17200; 15642; 16060 et seq.]

Objection and Response of Dennis Elm, Trustee, For Demand of Information and Accounting; Removal of Trustee; Return of Trust Assets and Restraining Trustee from Using Trust Assets to Defend Litigation [Cal. Prob. Code, §§ 17200; 15642; 16060 et seq.]

PREGRANT ORDER

Continued on the court's own motion to Friday, July 17, 2026, at 9:00 a.m. in Department 22.

LINE

7

**IN THE MATTER OF ESSIE MAE WEEKS
PR25-00028**

First Amended Petition to Compel Production of Trust Documents and Accounting

PREGRANT ORDER

This matter was continued from March 4, 2026 and May 6, 2026 to allow the petitioner to address issues with the petition. The court has reviewed the amended petition which did not resolve the issues with the original petition and the Declaration filed March 9, 2026.

The court on its own motion continues this hearing to August 26, 2026 at 9:30 a.m. in Department 22. Pending the continued hearing the petitioner shall resolve the following issues:

1. There is no Proof of Service on file showing all those entitled to notice have received either the original petition or the amended petition per Probate Code section 17203. There is a Proof of Substituted Service but it is unclear whether the documents were served at a valid address for the respondents or the relationship of the person who received the documents to the respondents. The court notes that the trustees were represented by counsel in the original trust matter.
2. The Declaration filed March 9, 2026 states that because the petitioner believes that the scholarship fund was created using trust funds, the court should be able to review the trust documents and accounting. The declaration also appears to challenge the trust amendment which created the scholarship fund based on the trustor's possible health issues (page 2, lines 18-19). The petitioner should have brought her challenge or her

questions about the trustor's capacity during the original litigation brought by Gloria Weeks in 2020 (case number FPR050261). The petitioner shall explain why she did not join in the litigation brought by Gloria Weeks.

LINE

8

**IN THE MATTER OF GERTIE MARIE WILLIAMS
PR26-00036**

Verified Petition Under Probate Code §850 For Accounting, Determination of Property Ownership, and Review of Fiduciary Conduct

PREGRANT ORDER

The court continued this matter from March 4, 2026 and May 13, 2026. No documents have been filed to resolve the issues since the last hearing.

The court on its own motion continues this hearing to August 26, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing the petitioner shall resolve the following issues:

1. The petitioner used an incorrect Notice of Hearing form (DE-120). The petition seeks relief under Probate Code § 850 which requires the use of the Notice of Hearing to Determine Claim to Property (DE-115).
 2. There is no Proof of Service on file showing all those entitled to notice have received it per Probate Code section 4544, including the attorney-in-fact and the principal.
 3. There is no Proof of Service showing all those entitled to notice have received it per Probate Code section 850.
 4. The petitioner is not listed as a current trustee of the trust. The settlors/original trustees are both alive. The petitioner shall explain her standing to bring a petition requesting an accounting for a revocable trust per Probate Code section 16069.
 5. The initials on the Durable Power of Attorney appear to be LP, which would be Lazarus Pete and not Gertie Williams. The petitioner shall explain how the DPOA is valid with the initials of someone other than the principal.
 6. The revocable trust was executed in July 2017 and the Schedule A included the real property. The petitioner shall explain why the real property should not be considered a trust asset.
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LINE

9

**IN RE THE ESTATE OF STEVEN LEROY FERGUSON, DECEASED
PR26-00099**

Petition for Letters of Administration; Letters of Special Administration with General Power

PREGRANT ORDER

This matter was continued from April 9, 2026, to allow the petitioner to address issues with the petition. Nothing has been filed since the last hearing. The court notes that the Letters of Special Administration expired April 9, 2026.

The court on its own motion continues this hearing to August 27, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing the petitioner shall resolve the following issues:

1. Petition, item 1: The Daily Republic is not a newspaper of general circulation for Vallejo. (See Prob. Code § 8120 et seq.) Publication must be done in a newspaper of general circulation.
2. Petition, item 3.h: Either (1) or (2) must be marked. Either (3) or (4) must be marked.
3. Notice of Petition, item 1: All of the names that the decedent was known by should be listed here, not the names of the decedent's children.
4. There is no proof of publication on file. (Prob. Code § 8124.)

LINE

10

**IN RE THE ESTATE OF TABBIE LYNN SMITH, DECEASED
PR26-00100**

Petition for Letters of Administration and for Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

This matter was continued from April 9, 2026 to allow the petitioner to address issues with the petition. Nothing has been filed since the last hearing.

The court on its own motion continues this hearing to August 27, 2026 at 9:30 a.m. in Department 22. Pending the continued hearing the petitioner shall resolve the following issues:

1. Petition, item 1: The petitioner did not specify which newspaper will be used for publication.
2. Petition, item 3.d: The stated estimate value of the estate is less the maximum value for a petition under Probate Code section 13100. The petitioner shall explain why a full probate proceeding is necessary.
3. Petition, item 2.d(1): The petition seeks to waive bond based on the reasons given in Item 3.e, but no boxes are checked in Item 3.e. There are no waivers of bond on file from any beneficiaries. Absent a waiver of bond signed by all heirs (or by a guardian ad litem on behalf of a minor heir), the court will require the petitioner to post bond before letters issue.
4. Petition, item 5.a: Either (7) or (8) must be marked.
5. Petition, item 9: The petition must also be signed by the self-represented litigant on the attorney signature line. (Probate Code §§ 1020, 1021; California Rules of Court, Rule 7.103.)
6. Notice of Petition, item 1: All of the names that the decedent was known by should be listed here.
7. There is no Proof of Service on file showing all those entitled to notice have received it per Probate Code section 8110.
8. There is no proof of publication on file. (Prob. Code § 8124.)

LINE

11

**IN RE THE ESTATE OF PAULINE MONICA BEKEBREDE, DECEASED
PR26-00154**

Petition for Probate of Will with Letters Testamentary and for Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

The court continued this matter to allow the petitioners to address the issues with the petition which have all been resolved. Therefore, absent any objections the court intends to find the following:

The court finds all notices have been given as required by law. The petition is granted as prayed.

The will of Pauline M. Bekebrede dated May 15, 2000 is ordered admitted to probate.

The court appoints Penny Bussone and Heidi Bekebrede as co-executors with full authority under the Independent Administration of Estates Act.

Bond is waived.

The court appoints Paul D. Miller as probate referee. The personal representative shall file their Inventory and Appraisal within four months of the date letters are issued. **A compliance hearing regarding the filing of the Inventory and Appraisal is set for November 30, 2026 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

The personal representative shall file either their petition for final distribution or their first status report within 12 months of the date letters are issued. **A compliance hearing regarding the filing and service of the petition or status report is set for August 30, 2027 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

LINE

12

**IN RE THE ESTATE OF DAVID JOSEPH BONAIME, DECEASED
PR26-00158**

Amended Petition for Letters of Administration

PREGRANT ORDER

This matter was continued from May 4, 2026 to allow the petitioner to address issues with the petition. The court has reviewed the amended petition filed June 17, 2026 which did not resolve the issues.

The court on its own motion continues this hearing to August 27, 2026 at 9:30 a.m. in Department 22. Pending the continued hearing the petitioner shall resolve the following issues:

1. Amended Petition, item 2.d: Either (1), (2), or (3) must be marked.
2. Amended Petition, item 3.d: The value of the real property is stated at \$1,200.00. This appears inaccurate.
3. Amended Petition, item 3.a.: The date of death and place of death for decedent must be provided.

4. Amended Petition, item 3.c: The decedent's address at the time of death must be provided.
5. Amended Petition, item 3.d: The petitioner shall explain why seeks to administer an estate with no assets. The Probate Code provides alternate proceedings for collection of small estates and other types of collection of decedent's property.
6. Amended Petition, item 3.e: Either (1), (2), (3), or (4) must be marked. The petition does not seek a special administrator and the petition states the decedent died intestate. The petitioner shall explain if there is a will, or not.
7. Amended Petition, item 3.g(2)(c): The petitioner did not specify how she is related to decedent.
8. Amended Petition, item 3.h: Either (3) or (4) must be marked.
9. Amended Petition, item 5.a.(5): Either (a) or (b) must be marked.
10. Amended Petition, item 5.a: Either (7) or (8) must be marked.
11. Amended Notice: Amended petitions replace the original petition for all purposes. (Cal. Rules of Court, Rule 7.3(3).) Notice of amended petitions must be given in the same manner as notice for original petitions. (Cal. Rules of Court, Rule 7.53(a).) The notice filed on May 4, 2026 was incomplete on items 3 and 5, if the petitioner is seeking to administer the estate under the Independent Administration of Estates Act as indicated on the petition.
12. There is no Proof of Service on file showing all those entitled to notice have received it per Probate Code section 8110 for the original petition or the amended petition.

LINE

13

IN RE THE ESTATE OF SHIRLEY ELOISE AUSTIN, DECEASED
PR26-00210

Petition for Letters of Administration and for Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

This matter was continued from May 21, 2026 to allow the petitioner to address issues with the petition. Nothing has been filed since the last hearing.

The court on its own motion continues this hearing to August 27, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing the petitioner shall resolve the following issues:

1. Petition, item 2.d: The box checked is requesting a bond amount be fixed but the amount of bond is blank.
2. Petition, item 3.d: An estimated value of the estate must be provided. (Prob. Code § 8002(a)(4).) Unknown is insufficient.
3. Petition, item 5.a: Either (3) or (4) must be checked. Either (7) or (8) must be checked.
4. Petition, item 8: The petition states that the petitioner has no knowledge of the decedent's children's names and addresses. However, the attached death certificate lists the decedent's son and his address. The petitioner shall explain whether they have contacted the son.
5. The petition nominates the Solano County Public Administrator to serve as the personal representative, but no acceptance of the nomination is attached.
6. There is no completed Duties and Liabilities of Personal Representative form on file (Prob. Code § 8404).
7. The filed Proof of Service does not include the Solano County Public Administrator who is entitled to notice as the nominated representative.

LINE

14

IN RE THE ESTATE OF JASON MICHAEL HAGGARD, DECEASED
PR26-00307

Petition for Letters of Administration

Objection to Petition for Letters of Administration

PREGRANT ORDER

The court on its own motion continues this hearing to September 2, 2026, at 9:30 a.m. in Department 22. The Petitioner and the Objector to appear at the continued hearing. Pending the continued hearing the parties shall resolve the following issues with their pleadings:

As to the Petition filed by Daveisha Paige:

1. Petition, item 1: The name of the newspaper for publication was not provided.
2. Petition, item 2.b: The name of the proposed administrator was not provided.

3. Petition, item 2.d: Either (1), (2), or (3) must be marked. Absent bond waivers by all heirs, the court intends to set bond.
4. Petition, item 3.d: It is unclear why the petitioner seeks to administer an estate with minimal assets or why this method is appropriate. The Probate Code provides alternate proceedings for collection of small estates and other types of collection of decedent's property.
5. Petition, item e: Either (1), (2), (3) or (4) must be marked. Absent bond waivers by all heirs, the court intends to set bond.
6. Petition, item 5.a: Either (3) or (4) must be checked. Either (7) or (8) must be checked.
7. Petition, item 5.b: Either was or was not must be marked.
8. Petition, item 8: The petitioner must include herself on this list and provide her age, address, and relationship to the decedent.
9. The Notice of Petition was incomplete on item 1. and 10.
10. There is no completed Duties and Liabilities of Personal Representative form on file (Prob. Code § 8404).
11. There is no proof of publication on file. (Prob. Code § 8124.)
12. There is no proof showing that notice was given to the Solano County Public Administrator who may have a higher priority for appointment than the petitioner. (Prob. Code §8461, et. seq.)
13. The Proof of Service does not show that notice was given to the minor children per Cal. Rules of Court, Rule 7.51.

As to the Objection filed by Roxanne Graves:

There is no Proof of Service showing that the objection was served on the petitioner and the other interested persons.
